PERSONAL LOAN AGREEMENT

THIS AGREEMENT is made at the place and on the date as stated in the Schedule hereunder written ("the Schedule") BETWEEN The Borrower described as stated in the Schedule hereinafter referred to as "the Borrower" (which expression shall, unless repugnant to the context or meaning thereof, be deemed to mean and include his/her/its/their respective heirs, executors, administrators and legal representatives (where the/a Borrower is an individual/Sole Proprietor), successors (where the / a Borrower is a company incorporated under the Companies Act, 1956 or any other body corporate), the partner(s) from time to time of the firm, the survivor(s) of them and the heirs, executors, administrators, legal representatives and successors of the partners (where the / a Borrower is a partnership firm) of the ONE PART; AND HDFC Bank Limited , a Banking Company incorporated under the Companies Act, 1956 and having its registered office at HDFC Bank House, Senapati Bapat Marg, Lower Parel, Mumbai - 400 013. and a branch office in India at the address mentioned in the Schedule hereunder written hereinafter referred to as "the Bank" (which expression shall, unless repugnant to the context or meaning thereof, shall be deemed to mean and include its successors and assigns) of the OTHER PART.

The Borrower and the Co-Borrower shall unless it is repugnant to the context or meaning thereof jointly referred hereinafter as the Borrower(s).

IT IS HEREBY AGREED BETWEEN THE PARTIES HERETO AS UNDER:-

1. Definitions : The terms and expressions contained in this Agreement and specified in the Schedule are defined as under;

   "Borrower" , "Co Borrower " in the case of joint borrowings includes all the Borrowers and the grammar and construction of every concerned sentence shall be deemed to be appropriately amended so as to indicate more than one Borrower; Reference to the masculine gender includes reference to the feminine and neuter genders and vice versa.

   "Loan" means the aggregate principal amount drawn down that may be granted by the Bank to the Borrower(s), notwithstanding that the amount of the Loan drawn down may be less than the amount applied for or granted by the Bank.

   "Lending Branch" or "Concerned Branch" shall mean the Bank's branch at which the Loan is disbursed.

   "Outstanding Balance" means the balance of the Loan outstanding and unpaid interest, costs, charges, expenses and any other amounts payable by the Borrower in respect of or incidental to the borrowing or its recovery or realisation.

2. The Borrower(s) agrees to borrow from the Bank and the Bank has granted / agrees to grant to the Borrower(s) a loan not exceeding the amount stated in the Schedule (the loan amount hereinafter shall be referred to as 'the loan') on the terms, conditions and the purpose as stated/contained in this agreement and / or in the Borrowers(s) application form for the loan.

   2.1. The Borrower(s) has requested the Bank to disburse the loan to the Borrower(s) in the manner specified in the Loan Application form.

   2..2 The Borrower(s) shall be liable to pay interest on the loan from the date of disbursement of the loan at the interest rate specified in the Schedule and shall be compounded with monthly rests on the outstanding balances at the end of each month. The Bank shall however at its discretion be entitled to revise from time to time, upwards or onwards, the rate of interest applicable for the loan during the subsistence of this agreement. Such variation(s) would be subsequently intimated to the Borrower(s) and would be binding upon the Borrower(s).

3. The Borrower(s) shall repay/pay the loan and interest that is due from time to time in equated monthly installments (EMI's) as specified in the Schedule (time being the essence of the contract). The Borrower(s) confirms having perused, understood and agreed to Bank's method of calculating EMI's as also the appropriation thereof into principal and interest. The Bank in its sole discretion would be entitled to modify and vary the said rate of interest from time to time including on account of changes in interest rates made by the Reserve Bank of India from time to time . In the event rate of interest is modified, then in such event interest would be payable by the Borrower at the revised rate of interest. The Borrower shall keep himself/herself/itself advised of the variations from time to time. The Borrower shall also pay and bear all interest tax and other taxes as may be applicable

   3.1 The mode of repayment of installments of the said loan will be either PDCs, Standing Instructions (SI)/ Electronic Clearing System (ECS) to debit the customers bank account or any other mode as may be agreed to by the Bank.

   3.2 Irrespective of the mode, non-receipt of the installments / loan repayment on the due date will be treated as an event of default and subsequent clauses as given in this agreement will be come applicable.

4. The Borrower(s) has delivered to the Bank, post-dated cheques for the EMI's. Submission of such post dated cheques shall be deemed to be an unconditional and irrevocable authority given by the Borrower(s) to the Bank to present the cheques for payment to the Bank, which are delivered in advance, on their respective dates on which the same are drawn and the Borrower(s) warrant/s that the cheques will be honoured on the first presentation. Any non-presentation of a cheque(s) due to any reason will not affect the liability of the Borrower(s) to pay the EMI's or any other sum that may become due. The Borrower(s) shall be bound to forthwith replace the cheques or issue fresh cheques if required by the Bank.

5. Alternatively the Borrower has irrevocably and unconditionally authorized and instructed the Bank through Standing Instructions (SI) / Electronic Clearing System (ECS) instructions to debit the Borrower(s) account with the Bank towards the EMI's. The Borrower undertakes to maintain sufficient balance in the said account on which the instructions are issued and warrants the instructions will be honoured on the respective due dates. The Borrower(s) agrees and acknowledges that the bank may at its sole and absolute discretion at any time hereafter discontinue this arrangement of debiting the said account through the instructions and insist for delivery of post dated cheques for the EMI, which shall be delivered by the Borrower(s) to the Bank forthwith.

6. Simultaneously with the execution of this agreement, the Borrower(s) shall pay to the Bank non-refundable processing / service charges. as stated in the Schedule

7. Without prejudice to the Bank's other rights, the bank shall be entitled to demand immediate payment/repayment of the EMI's, the outstanding balance of the Loan, interest, additional interest, fees, costs, charges, expenses, stamp duty and all other sums payable by the Borrower(s) to the Bank under this Agreement and/or in connection with the Loan and the Applicant shall pay/prepay the same to the Bank within 24 hours of the Bank's demand, if

   7.1 The Borrower fails to pay any amount under this agreement on or before the due date or commits breach of any of the terms, covenants or conditions contained in this agreement; or

   7.2 It is found that the Borrower(s) commits any default under any other agreement(s) with the Bank : or

   7.3 There exists any circumstances which in the opinion of the Bank prejudicially affects or may affect the Bank's interest or the Borrower(s) ability to repay the loan;

   7.4 If it is found that the Borrower(s) has made any misrepresentation to the Bank;

   7.5 If the Borrower(s) commits an act of insolvency or if the Borrower(s) is declared insolvent or bankrupt or if a liquidator, receiver or official assignee is appointed in respect of any property or estate of the Borrower(s) or if the Borrower askes any application for declaring himself an insolvent or if an application for declaring the Borrower(s) as insolvent is made or any order is passed by the competent court or authority for taking the Borrower(s) into insolvency,

   7.6 If the Borrower(s) or any partner or Director of the Borrower(s) ceases to carry on the declared profession and/or becomes disqualified or disentitled (temporarily or permanently) from carrying on the declared profession and/or ceases to be a member of the association of professionals of which the Borrower(s) or any partner or Director of the Borrower(s) is a member and/or if any disciplinary proceeding or action is instituted or taken against the partner or Director of the Borrower(s).

   7.7 If there is any change in the status or constitution of the Borrower(s) and such change has not been communicated to the Bank or if the change although communicated, is considered by the Bank to be a material change.

8. Notwithstanding anything stated elsewhere in this agreement, the continuation of the loan shall be at sole and absolute discretion of the Bank and the Borrower(s) outstanding shall be payable to the Bank on demand. The Bank may at any time in its sole discretion and without assigning any reason call upon the Borrower(s) to

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pay the Borrower(s) outstanding and thereupon the Borrower(s) shall, within 48 hours of being so called upon, pay the whole of the Borrower(s) outstanding to the Bank without any delay or demur.

9. Without prejudice to the other rights of the Bank, if the Borrower(s) defaults in making any payment due to the Bank pursuant to this agreement, the Borrower(s) shall pay to the Bank additional interest as Late Payment Charges at the rate stated in the Schedule (or at such higher rate as the Bank may specify from time to time) on the entire amount outstanding from the date of default till the date of payment of the entire outstanding amount.

10. All sums payable by the Borrower(s) to the Bank shall be paid without any deductions whatsoever at the concerned branch or at such other place as the Bank may specify or shall be so paid as to enable the Bank to realise the sum on or before the due date. Credit for payments will be given from the date of realisation.

11. The Borrower(s) hereby confirms declares and agrees :-

11.1 Notwithstanding anything to the contrary contained herein, if any law, regulation, order or directive (whether or not having the force of law) shall be enacted or issued or any existing law, regulation or directive is changed or its interpretation varied by any government or any Court or howsoever, materially or changing any reserve requirements or tax statutes thereby in any way reducing for the Bank the sums or revenue the from receivable, the EMI's shall automatically stand increased and the same shall be binding upon the Borrower(s).

11.2 That the Bank shall be entitled to recompute the EMI's if the Bank varies the interest rate.

11.3 That the Bank may in its discretion vary the interest rate from time to time. Such variation(s) would subsequently be intimated to the Borrower(s) in writing and shall be sent by ordinary post and would be binding upon the Borrower(s) and the Borrower(s) shall not be entitled to dispute or question the same on any ground whatsoever.

11.4 The Borrower(s) shall reimburse or pay to the Bank the amount paid or payable to any Government authority or any other regulatory agency whether in India on account of any tax levied by the Government authority or agency or interest or any other amount (and / or other charges including the interest) on the loan provided by or (as the context may require) due to the Bank. The Borrower(s) shall make reimbursement or payment on demand without demur as and when called upon to do so by the Bank.

11.5 To bear and pay all taxes, rates, duties, stamp duty, charges and other imposts and obligations, existing as well as future, in respect of the transaction hereunder;

11.6 That the Bank shall have a paramount right of set off and, in exercise of the Bank's general lien under law, the Bank shall also have a paramount right of lien on all monies, accounts, securities, deposits, goods and other asset and properties belonging to the Borrower or standing to the Borrower(s) credit (whether singly or jointly with other person/s) which are or may at any time with or in the possession or control of any branch of the Bank for any reason or purpose whatsoever.

11.7 That any statement of account furnished by the Bank shall be accepted by and be binding on the Borrower(s) and shall be conclusive proof of the correctness of the amounts mentioned therein. If the Borrower(s) desires to question any part thereof, the Borrower(s) shall inform the Bank full details of the same within 15 days of the receipt of the statement of account by the Borrower(s) and Borrower(s) shall not be entitled to do so thereafter on any ground whatsoever (and deemed to have been accepted by the Borrower(s) if there are no queries within 2 week from receipt of the statement).

11.8 That the Borrower(s) shall not change its name or constitution or close or change the account on which the post dated cheques are drawn without the prior written consent of the Bank. Further the Borrower(s) shall not be entitled to call upon the Bank to refrain from presenting any cheque and / or any instruction for payment to the bank on account of "Stop Payment" instructions or for any reason whatsoever and if the Borrower(s) does so, and the bank shall nevertheless be entitled to present the cheque(s) and / or carry out any instruction given to the bank for payment. In the event of dishonour of such cheque(s) and / or non-carrying out of the instruction given to the bank, the provisions of clause (ix) below shall apply.

11.9 The Borrower(s) agree to give Post Dated Cheques / Standing Instructions / ECS Instructions for the repayment of the loan and is fully cognizant of the fact that dishonour of cheques / revoke of SI / ECS Instructions is a criminal offence under the law. It is understood and acknowledged by the Drawer of the aforesaid Post Dated Cheques that non-presentation of the Post Dated Cheques on the part of the Bank due to any reason whatsoever will not affect the liability of the Borrower(s) to repay the loan. The Drawer of the Post Dated Cheques agrees to replace the cheques if required by the Bank.

11.10 The Borrower(s) undertake to the Bank to honor all payments without fail and not to instruct the Bankers to stop the payments of the cheques/ countermand the cheques/revoke the ECS/SI instructions. The Borrower(s) shall not Instruct the Bank to withhold depositing the cheques. In case of dishonor of cheques or any other instruments issued by the Borrower(s) or where the Borrowers revoke the ECS/SI instructions issued by them to the drawee Bank or where despite the Borrower(s) having issued the Instructions to the drawee bank under the ECS/SI mode the Bank has not received the monies equivalent to the installment, the Borrower(s) agree and undertake that they are liable to pay the installment along with Cheque Bounce charges and Late Payment Charges as stated in the schedule to the agreement and shall also be liable to reimburse the Bank costs and expenses, including legal fees. The Bank will issue no notice reminder or intimation to the Borrower(s) regarding the presentation of the aforesaid cheques, ECS/SI as the case may be. Nothing contained in this clause shall prejudice the other rights of the Bank in law or otherwise.

11.11 That if any cheque given by the Borrower(s) to the Bank is dishonoured for any reason whatsoever then, without prejudice to the Bank's other rights (including those under chapter XVII of the Negotiable Instruments Act, 1881) the Borrower(s) shall be charged and pay to the bank Cheque Bounce Charges as stated in the schedule

11.12 That the Borrower(s) if required, subject to the bank's prior permission, swap / interchange the cheques issued and drawn in one bank to that of the other bank, on paying the bank Cheque Swapping Charges as stated in the schedule to the Agreement.

11.13 That the Borrower(s) shall comply with and be bound by the Bank's rules and charges, which may change at the Bank's discretion from time to time.

11.14 That each Borrower(s) is a major and is competent in law to execute this agreement.

11.15 The Borrower(s) shall obtain the prior written permission from the Bank before borrowing any amount from other banks, financial institutions.

11.16 Any claims, demands, actions, costs, expenses and liabilities incurred or suffered by the Bank by reason of non- payment or insufficient payment of stamp duty by the Borrower on this Agreement and the Documents and any other writings or documents which may be executed pursuant to and/or in relation to this Agreement.

11.17 The Borrower(s) (in case of a company) has taken all necessary corporate and other actions for execution of this Agreement and availing the Loan from the Bank; and the execution hereof constitutes legal, valid and binding obligations of the Borrower. And that there is no suit, action or proceedings against the Borrower(s) pending before any Court of Law, which might affect the Borrower(s) liability to perform its obligations hereunder.

11.18 In the event (a) the Borrower/s does not utilize the Loan, or (b) the Borrower requests the Bank to cancel the Loan within 7 days of the issuance of cheque / account transfer / demand draft of the Loan to the Borrower and/or insurance company on behalf of the Borrower, as the case may be, the Borrower shall be liable to pay cancellation charges and interest upto date of cancellation. Other charges, if any, as set out in the schedule hereunder written, will be applicable. Notwithstanding anything contained herein the Bank may at its sole and absolute discretion, suspend or cancel the Loan if the same is not utilized within the time as mentioned above in this clause.

11.19. The Borrower(s) confirm that the funds will be used for the stated purpose only and will not be used for the purpose of making investment in the capital market or for any speculative purposes and or anti social purpose. The bank has the right to recall the advance if the funds are used for any other purpose other than declared and / or speculative and / or anti social purposes.

12. The Bank at its sole discretion and on such terms as to pre-payment as it may prescribe, permit acceleration of EMIs or prepayment at the request of the Borrower(s). The Borrower(s) may prepay the entire outstanding loan (but not a part thereof) by giving to the Bank at the concerned branch not less that 15 days notice in writing of the Borrower(s) intention to prepay and paying to the Bank in full the outstanding principal amount of the loan, all outstanding EMIs, interest, charges and other sum payable by the Borrower(s) to the Bank. The prepayment shall take effect only when cash has been paid or cheques have been realised. Prepayment cannot be made within twelve months of disbursement and before payment of twelve equated monthly installments. Prepayment Charges as stated in the Schedule on the outstanding principal amount of the loan, or such rates as decided by the Bank will be applicable. Under exceptional circumstances, if the customer wishes to foreclose the loan before repayment of twelve EMIs (minimum holding period), the customer agrees to pay all charges including residual interest component of first twelve EMIs. If a loan is closed at the behest of the Borrower(s) due to topping-up/enhancement of the existing loan, foreclosure charges as applicable will be payable.

13. At the request of the Borrower, the Bank may at its own discretion also finance the insurance premium of an insurance policy insuring the Borrower against the risks of personal accident, accidental hospitalization, outstanding amount of loan to the Bank and/or critical illness provided that such insurance policy has been taken out by the Bank on behalf of the Borrower from an insurance company approved by the Bank with a specific instruction and authority by the Borrower to such insurance company that in case of any loss reported under the section of 'outstanding amount of loan to the Bank', the loss will be paid to the Bank by such insurance company. Such insurance premium paid by the Bank on behalf of the Borrower shall be added as the principal amount to the Loan granted herein and shall form part of the Loan. The Borrower shall pay to the Bank the amounts towards insurance premium as mentioned above which may be loaded to the installments. The insurance premium being a part of Loan may be disbursed by the Bank directly to such an insurance company approved by the Bank and such disbursement shall be deemed to be disbursement to the Borrower. Wherever the borrower agrees for the insurance coverage, all expenses, charges, fees, service tax and other taxes etc as applicable shall be incurred and paid by the borrower . In the even the said charges are paid by the bank on borrowers behalf , the borrower shall reimburse the same to the Bank within 24 hours of the bank's demand.

14 The Bank shall at any time ,without any consent of or reference to the Borrower(s) be entitled to securities, sell, assign, discount or transfer all or any of the Bank's rights and obligations under this agreement to any person(s) of the Banks choice in whole or in part and in such manner and on such terms as the Bank may decide. Any such sale, assignment or transfer shall conclusively bind the Borrower(s). The Borrower(s) shall not be entitled to directly or indirectly assign the benefit or obligation of this agreement.

15. The Borrower(s) expressly recognizes, accepts and consents that the Bank shall be absolutely entitled and have full power and authority to sell, assign, securities or transfer in any manner, in whole or in part and in such manner and on such terms as the Bank may decide including reserving a right to the Bank to retain its power hereunder to proceed against the Borrower(s) on behalf of the purchaser, assignee or transferee, any or all outstandings and dues of the Borrower(s), to any third party of the Bank's choice without reference to or without intimation to the Borrower(s). Any such action and any such sale, assignment, securitisation or transfer shall bind the Borrower(s) to accept such third party as creditor exclusively or as a joint creditor with the Bank, or as creditor exclusively with the right to the Bank to continue to exercise all powers hereunder on behalf of such third party and to pay over such outstanding and dues to such third party and or to the Bank as the Bank may direct. The third party shall have the authority of the Borrower/s to collect the due amounts.

16 The Borrower(s) hereby authorises the Bank at the risk and cost of the Borrower(s) to engage one or more person(s) to verify any fact or information furnished by, concerning and pertaining to the Borrower(s) and/or to collect the Borrower(s) outstanding and/or to enforce any security and may furnish to such person/s such documents, information, facts and figures as the Bank deems fit.

17 The Borrower(s) expressly recognize and accept that the Bank shall without prejudice to its rights to perform such activities itself or through its officers or employees be entitled and has full power and authority so to do to appoint one or more third parties as the Bank may select and to delegate to such third party all or any of its functions rights and powers under this agreement relating to the administration of the loan including the rights and authority to collect and receive on behalf of the Bank from the Borrower(s) all dues and unpaid installments and other amounts due by Borrower(s) under this agreement and to perform and execute all lawful acts, deeds, matters and things connected therewith and incidental thereto including sending notices contacting the Borrower(s), receiving

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Cash/Cheques/Drafts/Mandates from the Borrower(s) and giving valid and effectual receipts and discharge to the Borrower(s). For the purposes aforesaid or for any other purposes at the discretion of the Bank, the Bank shall be entitled to disclose to such third parties all necessary or relevant information pertaining to the Borrower(s) and the Loan and the Borrower(s) hereby consent to such disclosure by the Bank. Notwithstanding the above, the Borrower(s) expressly accept and authorize the Bank (and /or any such third party as the Bank may select) to contact third parties (including the family members of the Borrower(s)) and disclose all necessary or relevant information pertaining to the Borrower(s) and the Loan and the Borrower(s) hereby consent to such disclosure by the Bank (and/or any such third party as thee Bank may select).

18 Any notice pursuant hereto shall be deemed to be duly given served if sent by Registered Post addressed to the Borrower(s) address/es given in the Schedule and such notice shall be deemed to take effect on the third working day following the date of the posting thereof.

19. **Fax Indemnity**

19.1 The Borrower is/Borrower are aware that transmission of Instructions through Facsimile ("**Fax**") involves a number of risks including fraudulent alterations and incorrect transmissions and absence of confidentiality. However, the Borrower is/Borrower are desirous of providing instructions ("**Instructions**") to the Bank through Fax for various matters under this Agreement including in relation to the Loan and the operation thereof.

19.2 In consideration of the Bank permitting the same, the Borrower/Borrowers hereby irrevocably, jointly and severally agrees, confirms and undertakes with the Bank as under:-

i. The Bank shall be entitled (without being bound to do so) to rely upon the Instructions provided through Fax (and believe the same to be genuine), for their any requirements. In case of any question as to what were the Instructions provided or received, the records of the Fax received by the Bank from the Borrower/Borrorwer shall be final.

ii. The Borrower/Borrowers shall ensure that the Instructions provided through Fax the Bank are executed by a person duly authorised in this behalf (" **Authorised Person**") and the Bank shall not be responsible for conducting any verification in this regard, whatsoever:

iii. The Borrower confirms/ The Borrower confirms that the Bank shall not be bound to act in accordance with whole or any part of the Instructions as it may appear in the Instruction so conveyed and the same shall be at the Borrower's risk and the Bank shall not be liable for the consequences of any such refusal or omission to act or deferment of action.

iv. The Borrower/Borrowers shall deliver on the same day or on immediate next day to the Bank the original Instructions in writing signed by the Authorised Person with a marking on the top "confirmation of the same". The Bank shall not be required to await receipt of the said instruction in writing before taking any action in connection with the Instructions provided through fax and the non-delivery and non conformity of such instruction in writing shall not in any manner prejudice to the Bank's right.

v. The Borrower/Borrowers shall indemnify and keep the Bank indemnified from and against all actions, suits, proceedings, claims, damages, expenses, losses and liabilities whatsoever reason arising in connection with or relating to any Instructions provided by Fax by the Borrower/Borrowers received by the Bank or claimed to have been sent by the Authorised Person pursuant to this Clause 19.

vi. The Bank may at any time whatsoever without assigning any reason withdraw or modify or add the facility/ies provided to the Borrower / Borrowers.

vii. The Borrower is/Borrowers are aware and confirms that the Bank is agreeing to act on any Instruction provided through Fax only by reason of, and relying upon these undertaking and indemnities contained in this Clause 19

20. All costs (including advocates costs) charges, expenses, taxes, duties (including stamp duties) in connection with this agreement, any document executed pursuant here to and the creation, enforcement, realisation, or attempted realisation of any security shall beincurred and paid by the Borrower(s) alone. In the event the stamp charges as aforesaid are paid by the Bank on the Borrower's behalf, the Borrower shall reimburse the same at actual to the Bank within 24 hours of the Bank's demand.

21. Any dispute or difference arising between the parties shall be subject to the competent courts in Mumbai having jurisdiction over the subject matter.

22. Any delay in exercising or omission to exercise any right, power or remedy accruing to the Bank under this agreement or any other agreement or document shall not impair any such right, power or remedy and shall not be construed to be waiver thereof or any acquiescence in any default, nor shall the action or inaction of the Bank in respect of any default or any acquiescence by it in any default affect or impair any right, power or remedy of the Bank in respect of any other default.

23. If there two or more Borrower(s), the Borrower(s) liabilities under this agreement shall be joint and several.

24. The Borrower(s) authorizes HDFC Bank disclose, from time to time any information relating to the Loans to any parent / subsidiary / affiliates / associate entity of HDFC bank, and to third parties engaged by HDFC bank, for purposes such as marketing of services and products.

25. Accordingly, the Borrower(s) hereby agrees and gives consent for the disclosure by HDFC Bank of all or any such ;

(a) Information and data relating to the Borrower(s); (b) The Information or data relating to any credit facility availed of / to be availed, by the Borrower(s) and (c) Default, if any, committed by the Borrower(s), in discharge of my / our such obligation, as HDFC Bank may deem appropriate and necessary to disclose and furnish to Credit Information Bureau (India) Limited and any other agency authorised in this behalf by RBI.

26. Borrower(s) undertakes that

(a) The Credit Information Bureau (India) Limited and any other agency so authorised may use, process the said information and data disclosed by HDFC Bank in the manner deemed fit by them; and

(b)The Credit Information Bureau (India) Limited and any other agency so authorised may furnish for consideration, the processed information and data or products thereof prepared by them, to banks / financial institutions and other credit grantors or registered users, as may be specified by the Reserve Bank in this behalf.

27. The Borrower(s) have read the entire Agreement constituting of above clauses including the Loan details and various charges as given in Schedule to the Agreement which has been filled in their presence. The Borrower(s) shall be bound by all the conditions including the details stated in the Schedule to the Agreement. The aforementioned Agreement and other documents have been explained in the language known to the Borrower(s) and the Borrower(s) have understood the entire meaning of the various clauses stated in this agreement and schedule.

28. The parties hereto expressly agree that all disputes arising out of and /or relating to this Agreement including any Collateral Document shall be subject to the exclusive jurisdiction of the Court/Tribunal of the city in which the Branch of HDFC Bank Limited which is party to this agreement is situated, provided however that if any dispute arising under this agreement is below the pecuniary jurisdiction limit of the Debt Recovery Tribunals established under Recovery of Debts Due to Banks and Financial Institutions Act, 1993 (51 of 1993), then such dispute shall be referred to arbitration in accordance with the provisions of the Arbitration and Conciliation Act, 1996 as may be amended, or its re-enactment, by a sole arbitrator, appointed by the Bank. The costs of such arbitration shall be borne by the losing Party or otherwise as determined in the arbitration award. If a party is required to enforce an arbitral award by legal action of any kind, the party against whom such legal action is taken shall pay all reasonable costs and expenses and attorneys fees, including any cost of additional litigation or arbitration taken by the party seeking to enforce the award.

The Borrower(s) have affixed their signatures after verifying and understanding the contents of this agreement. The Borrower(s) are aware that the Bank shall agree to become a party to this Agreement only after satisfying itself with regards to all conditions and detail's filled by them in the Application for the Loan and this agreement is in consonance with the Bank's policy.

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